

Plan for the Operation of the Central Counting Station
Hays County Election Center
120 Stagecoach Trail
San Marcos, Texas 78666

Purpose

Section 127.007 of the Texas Election Code requires the Manager of the Central Counting Station (CCS) to establish and implement a written plan for the orderly operation of the CCS plan.

Location

The Hays County CCS is located at the Hays County Government Center, 120 Stagecoach Trail, San Marcos, Texas 78666.

Preparation

- All personnel take the prescribed oath for election officials.
- Assign functions to personnel.
- Perform second test count.

CCS Personnel

CCS Presiding Judge:	Jon Leonard
CCS Alternate Judge:	Brian McAuliffe
CCS Manager:	Jennifer Doinoff
Tabulation Supervisor:	Jeff McGill
CCS Clerk:	Cliff Ormiston
CCS Clerk:	Kayla Booker-Harrell

- The Elections Administrator, Jennifer Doinoff, will serve as the CCS Manager to manage the overall administration of the station and supervision of personnel.
- The Hays County IT Director, Jeff McGill, will serve as the Tabulation Supervisor to operate the automatic tabulating equipment
- The CCS clerks are appointed by the CCS Manager and the Presiding Judge as outlined in section 127.006 of the Texas Election Code. A Clerk appointed by the Manager serves under the Manager and shall perform the functions directed by the Manager. A Clerk appointed under the Presiding Judge works under the Presiding Judge and shall perform the functions directed by the Presiding Judge (§127.006[c])
- The Presiding Judge/Alternate Judge will serve to maintain order in the CCS, administer oaths, and receive ballots to be counted.



Controller and Scan Check-in at Counting Station — CCS Clerk

- Verify that the seal number on the Scan corresponds to the assigned serial number.
- When all is in order, release the Scan to the Count process.

Preparation to Read the vDrive into Count — CCS Clerk

- Make sure the totals on the Scan report match the counted totals.
- If all is in order, save the results.
- Print the results and place the seal and tape in the quarantine envelope.

CCS Manager

- Record counted ballots from each vote center.
- Release data and media to the Tabulation Supervisor.
- Place the Scan in a designated area.
- Conduct overall supervision of the CCS.

Tabulation Supervisor

- Tabulate votes into Count.
- Prepare final reports.
- Maintain security of the tabulation system.
- Process the vDrive.
 - Ensure the number written on the vDrive equals the number of votes counted in Count.
- At the conclusion of the count of ballots, announce the number of ballots cast to the CCS Manager.
 - The CCS Manager will verify the vDrive and log the votes tallied from that vDrive.
- At designated intervals, prepare election return reports and deliver them to the CCS Manager.

CCS Presiding Judge

- Responsible for maintaining order and has the same authority, and is appointed in the same manner, as a district judge, including the authority to issue arrest warrants.
- Responsible for determining voter intent on ballots.
 - *A party chair someone other than an employee of Elections must always be involved.*
- Administer oaths (see below).
- Maintains the order within the CCS.
- Acts as the custodian of testing materials until they are delivered to the custodian of records.



- Certify precinct, cumulative, and canvass reports.
- Resolve voter intent concerning write-in votes.
- Assist the Tabulation Supervisor with counting write-in votes.

Section 127.0015 of the Texas Election Code prescribes a required oath for all CCS personnel. This oath will be administered verbally to all members of the Early Voting Ballot Board and all personnel at the CCS prior to the performance of any duties by either the board or the CCS.

Oath

“I swear (or affirm) that I will objectively work to be sure every eligible voter’s vote is accepted and counted, and that only the ballots of those voters who violated the Texas Election Code will be rejected. I will make every effort to correctly reflect the voter’s intent when it can be clearly determined. I will not work alone when ballots are present. I will faithfully perform my duty as an officer of the election and guard the purity of the election.”

During primary elections each political party chair should be on site and involved as needed.

Receipt of the Controller, Scan, and Supply Box from Election Precincts — (CCS Clerk)
The intake team comprises a minimum of 3 personnel.

Sections 129.051 and 129.052 of the Texas Election Code require the general custodian of election records to develop certain procedures related to inventory control and the chain of custody of voting system equipment and electronic media associated with this equipment, providing for verification of equipment identifiers, verification of seals, and verification of the chain of custody.

- Examine the seal number on each Controller and Scan to ensure that it corresponds to the serial number approved by the Elections Administrator.
- Record the number of voters checked in on the TouchPad electronic poll book, the number of ballots issued from the Controller, and the number of ballots scanned from the Scan. Let the CCS Manager know of any discrepancies.
- Verify that the polling location Judge or head clerk has delivered envelopes numbers 1, 2, and 4 and appropriate election records are contained.
- Examine contents of envelope number 2 to ensure that it contains the Register of Official Ballots and the Combination Form Poll List and Signature Roster.
- Write the number of signatures, provisional signatures, and cancelled booths on the prescribed spreadsheet.
- If all is in order, sign and deliver the Controller and the Scan to the CCS.
- Remove provisional ballot envelopes, if any, and verify that the number of envelopes corresponds to the number of voters shown on the list of provisional voters.



- Record the number of provisional ballots on the summary of provisional ballots.

The polling location Presiding Judge or designee shall bring paper ballots in the locked and sealed ballot bin to the secure room and the Scan and the Controller to the tabulation room.

Absentee Ballot Scanning

The ballot resolution board comprises a minimum of 3 personnel.

- The CCS Clerk shall process all absentee ballots through an optical scanner.
- The CCS Manager and Clerk will verify the totals for each ballot batch.
- The Ballot Resolution Board, consisting of individuals from each party or jurisdiction, will resolve any ballot issues.
- The CCS Presiding Judge will provide a final ruling on the intent of any questionable resolution determinations.
- During the time that the CCS has convened, the general custodian of records shall post a guard to ensure the security of ballot boxes containing voted ballots throughout the period of tabulation at the CCS (§127.1232).

Duplication of Ballots

- Certain ballots counted with automatic tabulating equipment may have to be duplicated if the ballot is damaged or cannot be optically scanned.
- The Presiding Judges of the Early Voting Ballot Board, viz. Bob Parks, John Hatch, and Larry Rayos, with any assistants they deem necessary, will duplicate any damaged ballots in accordance with Section 127.126 of the Texas Election Code.

Resolving Voter Intent

- At the direction of the Presiding Judge, CCS Clerks will resolve any voter intent questions on the ballots as they are duplicated or manually counted, as applicable.
 - The Presiding Judge and at least two other members of the Early Voting Ballot Board will decide upon ambiguous voter intent prior to the duplication of a ballot.
 - The CCS Clerk will then create the duplicate ballot according to the determined intent of the voter under the supervision of the Presiding Judge.

Printing of Early Voting Tally Summary Report

- Once the CCS convenes on Election Day, the early voting Tally summary report will be printed prior to processing the early voting Controllers and Scans in the tabulation room in view of the CCS members, poll watchers, and inspectors (Appointed Persons). No person may view results prior to 7:00 pm. CCS personnel



will place tapes in an envelope and secure this envelope with a tamper-proof seal signed by any present poll watchers.

Tabulation Procedures for Early Voting and Election Day

- The CCS will assemble and swear or affirm the Oath.
- The CCS will process Scans and Controllers in the tabulation room within view of Appointed Persons.
- The CCS will verify and break seals within view of all Appointed Persons.
- The Tabulation Supervisor will read vDrives into the tabulation system once seals are verified and broken.
- The CCS will bring in provisional bags and verify seals in front of Appointed Persons.
 - The CCS will hand the provisional bags to Elections personnel for processing.

Checks and Balances

1. All ballot boxes are delivered and a comparison of the serial numbers on the seal log with the log of distributed seals is made to ensure match. Wire seals are properly kept.
2. All election records are received at the CCS.
3. Printing the precinct report shows the number of ballots counted by precinct.
4. The printed cumulative report indicates all votes from all precincts are included. The CCS Presiding Judge signs the report.
5. The audit log is examined for counting interruptions, unauthorized equipment tampering, or any other activity that cast doubt on the vote totals.
6. The CCS Presiding Judge signs the printed unofficial precinct report on Election Night.
7. The third Logic and Accuracy Test succeeds; results are verified with the first and second tests' results. All ballot boxes containing voted ballots are properly locked with an indication on the outside of each box showing which election's ballots are contained in that box. The box is labeled with a chain of custody log.

Unofficial results will be released via the Hays County Elections webpage beginning no earlier than 7:00 pm on Election Day. Election Day results will be released periodically as returning equipment is processed, accepted, and tabulated until completion.

Reporting Results to the Secretary of State

The Secretary of State requires results reporting after each primary election, general election for state and county officers, and constitutional amendment elections. County elections offices transmit these totals through an online portal that the Secretary of State establishes and maintains.



Poll Watchers

Poll watchers are entitled to be present during the time the CCS has convened for the “purpose of processing or preparing to process election results and until the election officers complete their duties at the station” (Section 33.055, Texas Election Code).

- The poll watcher must deliver his or her Certificate of Appointment and Certificate of Completion of mandatory training to the Presiding Judge of the CCS. The Presiding Judge must countersign the Certificate of Appointment.
- Poll watchers are permitted to stand or sit to observe and hear counting activities. The Presiding Judge has the authority to intervene if there is interference by a poll watcher with the duties of the CCS personnel.
- All activities of poll watchers shall follow the guidelines contained within the current Poll Watchers Guide issued by the Secretary of State and reiterated in mandatory training.
- If more than three (3) poll watchers are present, the Presiding Judge will rotate them into the tabulation room three (3) at a time due to space limitations.

Delivery of Materials to the General Custodian of Election Records

The Hays County Elections office is the custodian of election records. Upon completion of the counting of ballots, all voted ballots, electronic media, election records, and election equipment will be retained by this office for the appropriate retention period.

vDrive Informational Codes:

- *vDrive Not Closed*: check totals on the Controller
 - If the totals match, close the vDrive properly. Proceed to tabulate V Drive
 - If Controller is not operable, verify the totals on the Signature Combination Form and Paper with the totals on the vDrive.
 - If applicable, count provisional and limited ballot signatures.
 - If the totals match, proceed with counting the vDrive. Make notes on the vDrive tabulation log.

If there is any indication of tampering, tabulation will stop. The CCS Manager will notify the Office of the Secretary of State immediately.

Equipment Storage — 24-Hour Camera Security

Verity Duos, Controllers, Scans, DBC, and Central will always remain stored in locked areas with secure access either by badge scan access or digital keypad lock.

- During election transport, Duos, Scans, and Controllers will be equipped with numbered wire seals and security tape to prevent tampering.



- During early voting, equipment will be sealed, logged, and placed in a locked area at night.
- Each morning, an Early Voting Clerk will check the seals and tape, and then log them on the seal report.
- Scans, TouchPads, and Controllers will always be kept in the custody of the Presiding Judge Early Voting Clerk.

If a seal is broken or the number is different than that logged during the previous evening, the Presiding Judge or Early Voting Clerk will immediately call the Elections Office. The Elections Office will immediately notify the Office of the Secretary of State and subsequently deploy new equipment to the polling location.

Equipment Chain of Custody

- The Controller and Scan will always remain in a secured location.
- Elections staff will sign over the Controller, Scan, TouchPad, and supplies to the Presiding Judge or Early Voting Clerk at the beginning of the early voting period or Election Day.
- The Presiding Judge or Early Voting Clerk will return the Controller, Scan, and TouchPad with the equipment and Signature Combination Log at the end of the voting period. Elections staff will check paperwork and ensure that the Close Polls Report is affixed to the Controller and Scan upon return. If all is in order, the Presiding Judge will sign the Chain of Custody back over to the Elections office.
- Printed Vote Records (PVRs) will be sealed in the gray PVR bag. A chain of custody tag will document each transfer of that bag from the polling location to the Elections office.
- Poll Watchers and State Inspectors will be rotated into the tabulation room to afford the best opportunity for keeping the process fluid.
 - Poll Watchers that are not in the tabulation room will have the opportunity to watch through the observation window until rotation return them to the tabulation room.

Reconciliation Process

- **Early voting in person** — compare the number of early voting check-ins from Precinct Central with the number of ballots cast.
- **Early voting by mail** — compare the number of ballots the Early Voting Ballot Board entered on the Ballot Transmission Form with the number of ballots counted (§§87.021 and 87.1221).
- **Election Day** — compare the number of Election Day check-ins from Precinct Central with the number of ballots cast (§127.007[b]).

The Tabulation Supervisor prints precinct returns and election totals reports. The CCS Presiding Judge signs these reports.



Replacement Equipment Chain of Custody

- Equipment replaced at a polling place will be logged on the Election Equipment Log by date, serial number, and polling location.
- Equipment will be in a separate secured location until tabulation.

If the CCS needs to reconvene, the CCS Manager will e-mail and call by phone Appointed Members to inform them of the time and date of reconvening.

Candidates, members of the press, and anyone who is neither an election official nor an Appointment Member will not be allowed in the area secured for the CCS on Election Day. All election officials are required to wear an identification badge stating their name and position. There will be a security guard on duty.

